

vicarious liability is alleged so the demurrer should be overruled. This position lacks merit. The demurrer to the sixth cause of action is sustained.

D. CRLA (Seventh C/A, wrongly titled as a UCL claim)

The CSCDA demurs to the seventh cause of action for violation of the Consumer Legal Remedies Act (“CLRA”). Though the demurer does not cite any authority specifically holding that the CRLA does not apply to public entities, it reasons (and cites authority for the position) that, absent specific statutory language imposing liability, a statutory scheme does not, by default impose liability on government entities. Plaintiff fails to adequately refute the principle. Accordingly, the demurrer to the seventh cause of action is sustained.

**3. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.**

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference trails the hearings on the demurrers and motions to strike for Lines 8-11. Counsel are ordered to appear via Zoom for the CMC, unless Lines 8-11 are uncontested. If Lines 8-10 are uncontested, then the CMC shall be continued to June 5, 2026 at 8:30 a.m. in Dept. 16.

Law & Motion

**4. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY
COMPANY VS. MATT DELIMA**

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS OF DEFENDANT
KNM CLAYTON, LLC AND FOR MONETARY SANCTIONS AGAINST DEFENDANT KNM CLAYTON, LLC IN
THE AMOUNT OF \$885.00**

FILED BY: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Summary

Plaintiff and Cross-Defendant Clayton Valley Shopping Center LLC (“Plaintiff”) Motion to Compel Production of Documents from Defendant and Cross-Complainant KNM Clayton LLC (“Defendant” or “KNM”) dba “Kick N Mule” and for sanctions in the amount of \$885.00 is **granted**.

Background

In this case, the underlying action arises out of a commercial lease between the parties. Plaintiff sued for breach of the lease and guaranty agreements when the Defendants allegedly breached said agreements by abandoning the premises and by failing to pay the charges due thereunder. The Defendants filed a cross-complaint alleging that the plaintiff breached the lease which caused them damage.

Plaintiff’s moving papers claim that Plaintiff served deposition notices to Defendant KNM and Defendant Matt Delima and Jason Haugen for March 24-26, 2025. The deposition notice was

accompanied by a Request of Production of Documents No. 20 that requested “Each and every WRITING which evidences, refers to, pertains to, tends to prove or disprove the factual basis of the deponent’s allegation, as set forth in its CROSS-COMPLAINT, that it sustained damage as a result of plaintiff’s breach of the LEASE.”

Plaintiff took the deposition of Matt Delima on March 24, 2026. Mr. Delima testified that he prepared a binder of documents responsive to Defendant’s Request for Production of Documents, which he provided to Mr. Haugen, who would be deposed on March 26, 2026. No documents were produced on March 24, 2026.

On March 26, 2026, Plaintiff’s took the deposition of Mr. Haugen. However, Mr. Haugen did not produce documents and did not bring a binder. Plaintiff’s Counsel met and conferred with Defendant’s Counsel regarding the document request. Plaintiff claims that his inquiry went unanswered.

On June 24, 2025, Plaintiff filed a Motion to Compel Production of Documents from Defendant and for sanctions in the amount of \$885.00. The Motion is supported by a Notice, Memorandum of Points and Authorities, Declaration of Counsel Ernie Zachary Park.

On October 1, 2025, Defendant’s counsel, Frank Presto III, provided a declaration and Memorandum of Points and Authorities in opposition of the Motion to Compel Production of Documents. Counsel represented that Defendant was able to recreate the documents and serve them no later than November 4, 2025. In Plaintiff’s reply brief filed November 21, 2025, Counsel represented that only ten (10) pages of documents (not a binder) were e-mail to him by Defendant’s counsel in support of Defendant’s claim. No other documents were provided.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court’s decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature

intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Where a party has failed to produce documents duly noticed in a notice of deposition, the aggrieved party may bring a motion to compel the same. CCP § 2025.450(a). If a motion under subdivision (a) is granted, the court **shall** impose a monetary sanction ...in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2025.450(g)(1).

Here, the Court finds that Plaintiffs' notice of deposition and the accompanying request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence. The Court finds that Defendants Counsel did not object to the request for production of documents and had represented that his clients would produce the documents. The records confirms that the parties had met and conferred before this motion was brought. The record also confirms that Defendants did not produce the binder of documents that supported their cross-complaint for damages, but only produced ten pages, with some invoices and checks.

While the production of documents appears to be partially moot, it took a motion for Defendants to comply with the original request that was served on January 11, 2025. Under these circumstances, the Court finds that Defendants is subject to sanctions for failing to produce the documents when requested at the deposition and acted without substantial justification.

Ruling

1. Plaintiff and Cross-Defendant Clayton Valley Shopping Center LLC ("Plaintiff") Motion to Compel Production of Documents from Defendant and Cross-Complainant KNM Clayton LLC ("Defendant" or "KNM") dba "Kick N Mule" and for sanctions in the amount of \$885.00 is **granted**.
2. Defendant shall produce all documents that support their claim for damages as set forth in their cross-complaint no later than ten (10) days from the date of this order, with the exception of those already produced. Further violations or non-compliance with this order may subject Defendant to issue and/or terminating sanctions.
3. Sanctions in the amount of \$885.00 shall be paid by the Defendant to Plaintiff's Counsel no later than ten (10) days from the date of this order.
4. Plaintiff's counsel is ordered to prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling no later than five (5) days from the date of the hearing.